

Contentious Chamber

Decision on the merits 64/2025 of April 1, 2025

File number: DOS-2020-01932

Subject: Complaint regarding a dismissal decision made following the consultation of the complainant's medical file by her hierarchical superior

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Christophe Boeraeve and Frank De Smet, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X, represented by Master Mélissa Fernandez Viesca, hereinafter referred to as "the complainant"

The defendant: Hospital Association Y, hereinafter referred to as "the defendant"

1 The new internal regulations of the DPA, following the amendments made by the Law of December 25, 2023, amending the Law of December 3, 2017, establishing the Data Protection Authority (LCA), came into effect on 01/06/2024.

In accordance with Article 56 of the Law of December 25, 2023, it applies only to complaints, mediation files, requests, inspections, and procedures before the Contentious Chamber initiated from that date: <https://www.autoriteprotectiondonnees.be/publications/reglement-d-ordre-interieur-de-l-autorite-de-protection-des-donnees.pdf>.

Files initiated before 01/06/2024, as in this case, are subject to the provisions of the LCA not amended by the Law of December 25, 2023, and the internal regulations as they existed before that date.

Decision on the merits 64/2025 — 2/15

I. Facts and procedure

1. On April 22, 2020, the complainant filed a complaint with the Data Protection Authority against the defendant.

2. The subject of the complaint concerns a dismissal decision, which would be based on health data related to the complainant that were allegedly consulted unlawfully by her hierarchical superior (hereinafter referred to as "the hierarchical superior").

3. The complainant worked as an employee within the defendant's establishment.

4. On March 3, 2020, the defendant notified the complainant of the termination of their employment relationship.

5. On April 16, 2020, the defendant, in response to a request from the complainant, informed her that her medical file had been consulted by her hierarchical superior on March 2, 2020. According to this same registered letter, this was the only consultation carried out by her. Furthermore, the defendant specified that it had initiated an internal investigation on this matter.

6. In her complaint form, the complainant indicated that she was informed of the termination of her employment contract during a meeting in which it was explained to her that one of the reasons for her dismissal concerned her health condition, which her hierarchical superior had concerns about. According to her, the hierarchical superior wanted to verify that her health condition was appropriate in order to learn of her dismissal.

7. On June 4, 2020, the complaint was declared admissible by the First Line Service based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber pursuant to

Article 62, § 1 of the LCA.

8. On January 7, 2021, the Contentious Chamber decided, under Article 95, § 1, 1° and Article 98 of the LCA, that the file could be processed on the merits.

9. On the same date, the concerned parties were informed by registered mail of the provisions as set out in Article 95, § 2 as well as Article 98 of the LCA. They were also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions. The deadline for receiving the defendant's response conclusions was set for February 18, 2021, the deadline for the complainant's reply conclusions for March 11, 2021, and the deadline for the defendant's rejoinder conclusions for April 1, 2021.

10. The parties are invited to defend themselves regarding the following grievances retained by the Contentious Chamber:

A. Regarding the legality basis of the processing of personal data alleged (potential violation of Articles 5.1.a) and 6 of the GDPR)

Decision on the merits 64/2025 — 3/15

Taking into account the factual elements raised by the complaint, the Dispute Chamber invites the defendant to express its views on the following points, and invites the complainant to respond if she wishes, particularly if she has additional factual elements to provide:

•

Does the consultation by the hierarchical superior of the complainant's medical file constitute processing of personal data for which the defendant is the data controller within the meaning of Article 4.7 of the GDPR? If not, in what capacity did she consult the complainant's medical file?

•

Did the defendant and/or the hierarchical superior have a valid legal basis for consulting the complainant's medical file in accordance with Article 6 of the GDPR? Was this data processing lawful and transparent within the meaning of Article 5.1.a) of the GDPR?

B. Regarding the qualification of the facts in light of Article 33 of the GDPR

To the extent that the reported facts (consultation of the complainant's medical file) could potentially constitute a personal data breach within the meaning of Article 33 of the GDPR, did the defendant – to the extent that it would be responsible for this data processing – notify the supervisory authority of the breach in accordance with Article 33.1 of the GDPR, and did it document the facts, their effects, and the measures taken to remedy the situation if applicable in accordance with Article 33.5 of the GDPR? If applicable, what was the result of the internal investigation announced by the defendant in its letter to the complainant dated April 16, 2020, and what measures were taken to remedy the data breach, if applicable?

11.

On the same date, the complainant and the defendant agree to receive all communications related to the case electronically. The complainant notes some errors in the letter inviting the parties to conclude.

12.

On February 17, 2021, the Dispute Chamber receives the defendant's response conclusions.

13.

On March 5, 2021, the complainant informs the Dispute Chamber that she has not been notified of the defendant's response conclusions.

14.

On March 17, 2021, the Dispute Chamber sets new deadlines for conclusions due to the exceptional notification issue that occurred with respect to the complainant. The new deadline for the receipt of the complainant's reply conclusions is set for April 18, 2021, and the new deadline for the receipt of the defendant's rejoinder conclusions is set for May 18, 2021.

Decision on the merits 64/2025 — 4/15

15.

On April 14, 2021, the Dispute Chamber receives the complainant's reply conclusions.

16.

On May 17, 2021, the Dispute Chamber receives the rejoinder conclusions from the defendant.

17.

On September 26, 2024, the parties are informed that the hearing will take place on October 22, 2024.

18.

On October 22, 2024, the parties are heard by the Dispute Chamber.

19.

On October 25, 2024, the minutes of the hearing are submitted to the parties. The Dispute Chamber also requests the provision of documents from the parties.

20. On October 30, 2024, the Dispute Chamber receives some remarks from the defendant regarding the minutes, which it submits to the file.

21.

On January 6, 2025, the defendant transmits to the Dispute Chamber as well as to the complainant the documentation related to the technical and organizational measures that were in place at the time of the events, as well as those currently in place.

22.

On January 27, 2025, the complainant reacts to the documentation provided by the defendant.

23.

On February 11, 2025, the defendant responds to the remarks made by the complainant regarding the documentation it transmitted on January 6, 2025.

## II. Reasoning

### II.1. Identification of the data controller

#### II.1.1. The parties' views

24.

The complainant identifies the defendant as the sole data controller concerning the grievances on which the parties have been invited to conclude, namely, in summary:

- 

"Regarding the legal basis for the processing of personal data alleged (potential violation of Articles 5.1.a) and 6 of the GDPR);

- 

Regarding the qualification of the facts in light of Article 33 of the GDPR."

25.

The defendant alleges that the complainant's hierarchical superior acted fully autonomously when she consulted the complainant's medical file. It specifies that this consultation was not done in its name, and that it did not give any instructions to the hierarchical superior in the commission of this act.

Furthermore, the defendant

2 Invitation letter to conclude dated January 7, 2021, see point 10 of this decision.

Decision on the merits 64/2025 — 5/15

specifies that the hierarchical superior acknowledged her fault during the internal investigation she conducted.

#### II.1.2. Assessment of the Contentious Chamber

26. The Contentious Chamber is not bound by the quality that the defendant attributes to herself. It must assess the reality of this qualification and, if necessary, dismiss it if the analysis indicates that it cannot be retained.

27. The Contentious Chamber recalls that a data controller is defined as "the natural or legal person or any other entity that alone or jointly with others determines the purposes and means of the processing of personal data" (art. 4.7 of the GDPR). This is an autonomous concept specific to data protection regulation, and its assessment must be based on the criteria it sets forth: the determination of the purposes of the processing of the relevant data as well as those of the means of that processing.

28. When an employee of an organization processes personal data in the context of the organization's activities, the processing is deemed to occur under the authority of the organization. However, there are exceptional situations in which the employee may define the purposes of a personal data processing themselves, "thus unlawfully exceeding the authority entrusted to them." In this regard, it should be clarified that it is the responsibility of the organization, in its capacity as data controller, to

implement appropriate technical and organizational measures.

29. In the present case, the Contentious Chamber takes into account, first and foremost, that the dismissal decision was not based on elements that would have been collected during the consultation of the complainant's medical file.

30. Furthermore, the Contentious Chamber also notes that access to the complainant's medical file occurred on March 2, 2020, at approximately 10:50 PM, which does not constitute ordinary working hours.

31. Moreover, the hierarchical superior admitted to having accessed the complainant's medical file unlawfully, and that she acted in order to verify that the complainant was in an adequate state to learn of her dismissal. In this regard, the defendant initiated a disciplinary procedure against the hierarchical superior.

32. Consequently, the Contentious Chamber considers that the hierarchical superior acted as the sole data controller when consulting the complainant's medical file, and that in doing so, she exceeded the authority entrusted to her by the defendant.

II.2. Regarding the breach of Articles 5.1.a) and 6 of the GDPR: the absence of a lawful basis for consulting the complainant's health data

II.2.1. The parties' viewpoints

33. The complainant alleges that the defendant consulted her medical file without a valid lawful basis.

34. The defendant states that the consultation of the medical file as such is regrettable and has specifically initiated a disciplinary procedure against the hierarchical superior for this. However, the defendant claims not to be responsible for this processing.

II.2.2. The assessment of the Contentious Chamber

35. It is not appropriate to examine this element, given that the processing whose lawfulness is contested and debated was not carried out by the defendant, and that the person responsible for this processing – namely, the hierarchical superior – is a third party to the present procedure. For the remainder, the Contentious Chamber refers to points 26 to 32 of this decision.

II.3. Regarding the breach of Article 33 of the GDPR: the absence of notification to the supervisory authority

II.3.1. The parties' viewpoints

36. The complainant denounces the absence of notification of the breach of her data to the Data Protection Authority (DPA) under Article 33 of the GDPR, as well as the absence of documentation related to said breach. In this regard, she notably points out that the defendant does not explain the specific measures taken regarding the hierarchical superior, nor does she further explain the stakes of the disciplinary procedure conducted against the hierarchical superior.

Decision on the merits 64/2025 — 7/15

Finally, it criticizes the defendant for failing to document the data breach in accordance with Article 33.5 of the GDPR.

37.

The defendant justifies the absence of notification to the Data Protection Authority (DPA) regarding the breach of the complainant's personal data by stating that after a joint analysis between its Data Protection Officer (DPO) and its legal department, it was determined that the said breach was not likely to result in a substantial risk to the rights and freedoms of the complainant. Furthermore, the defendant specifies that it informed the complainant of this breach. It also notes that although sensitive data was accessed without authorization, the breach is limited to the complainant alone, that the superior was not acting with malicious intent, and that she was subject to a disciplinary procedure in any case.

38. The defendant adds that it documented the breach of the complainant's personal data in accordance with Article 33.5 of the GDPR, in its incident register.

39. In any case, the defendant points out that the complainant does not allege any specific risk that she may have incurred as a result of the breach of her personal data.

II.3.2. Assessment of the Contentious Chamber

40. Article 4.12 of the GDPR defines a "personal data breach" as "a security breach that leads to the

accidental or unlawful destruction, loss, alteration, unauthorized disclosure of personal data transmitted, stored, or otherwise processed, or unauthorized access to such data."

41.

Article 33.1 of the GDPR provides that "In the event of a personal data breach, the controller shall notify the breach to the competent supervisory authority in accordance with Article 55, without undue delay and, where feasible, not later than 72 hours after having become aware of it, unless the breach is unlikely to result in a risk to the rights and freedoms of natural persons. When the notification to the supervisory authority is not made within 72 hours, it shall be accompanied by the reasons for the delay." The fifth paragraph of this article states that "The controller shall document any personal data breach, indicating the facts relating to the personal data breach, its effects, and the measures taken to remedy it. The documentation thus created enables the supervisory authority to verify compliance with this article."

7 Article 33.5 of the GDPR: "The controller documents any personal data breach, indicating the facts relating to the personal data breach, its effects, and the measures taken to remedy it. The documentation thus created enables the supervisory authority to verify compliance with this article."

8 It is the Contentious Chamber that emphasizes this.

Decision on the merits 64/2025 — 8/15

to the supervisory authority to verify compliance with this article. »9. In order to give effect to these two provisions, the data controller should also date the documentation that reflects this risk analysis.

42. The Contentious Chamber notes that the data controller must, in all circumstances, notify the DPA of the personal data breach, unless it is unlikely to result in a risk to the rights and freedoms of natural persons. Furthermore, it should be understood that this notification is the rule, and that the failure to notify the DPA of the breach in question is the exception, which the controller must demonstrate that the conditions for application are indeed met in a given situation. In any case, out of caution and with a protective perspective on the rights and freedoms of the individuals concerned, a data controller should always, in case of doubt, notify the DPA of a data breach within 72 hours of being informed of it, even in cases where they consider for several reasons that the breach is unlikely to result in a risk to the rights and freedoms of the individual concerned, but given the circumstances of the case, they cannot be entirely certain<sup>10</sup>.

43. The Contentious Chamber finds that the personal data of the complainant was subject to unauthorized access (breach of confidentiality) by the hierarchical superior, and that, moreover, health data was among these, which are protected in particular by Article 9 of the GDPR and professional secrecy, and require particular vigilance. It adds that the defendant did not provide it with the documentation constituted in accordance with Article 33.5 of the GDPR.

44. It follows from Recital 75 of the GDPR that a risk understood in the sense of Article 33 of the same Regulation may arise "in particular: [...] when the processing may give rise to discrimination, theft or identity fraud, financial loss, damage to reputation, loss of confidentiality of data protected by professional secrecy, [...] when the processing concerns personal data revealing racial or ethnic origin, political opinions, religion or philosophical beliefs, trade union membership, as well as genetic data, data concerning health or data concerning sexual life or data relating to criminal convictions and offenses, or related security measures;"<sup>11</sup>.

9 It is the Contentious Chamber that emphasizes this.

<sup>10</sup> EDPB, Guidelines 9/2022 on the notification of personal data breaches under the GDPR, Version 2.0, adopted on March 28, 2023, paragraph 119, available at: [https://www.edpb.europa.eu/system/files/2024-10/edpb\\_guidelines\\_202209\\_personal\\_data\\_breach\\_notification\\_v2.0\\_fr\\_0.pdf](https://www.edpb.europa.eu/system/files/2024-10/edpb_guidelines_202209_personal_data_breach_notification_v2.0_fr_0.pdf).

<sup>11</sup> It is the Chamber that emphasizes this.

Decision on the Merits 64/2025 — 9/15

45. The Disciplinary Chamber considers that the fact that the data breach concerned only the complainant, that the defendant initiated disciplinary proceedings against the hierarchical superior who acknowledged having acted wrongfully, and that she allegedly had no malicious intent when she inappropriately accessed the complainant's medical file are not sufficient in this case to relieve the defendant of its obligation to notify the supervisory authority of the data breach as it arises from the

case at hand.

46. Indeed, although the hierarchical superior claimed to have been guided by motivations that may appear commendable in the context of her inappropriate access to the complainant's medical file, the defendant could not be certain that the hierarchical superior did not access this information for hidden reasons or did not foresee subsequent treatments. In any case, certain risks have already materialized, given that the complainant has suffered a loss of control and confidentiality over data concerning her, which are protected by professional secrecy. Therefore, the considerations mentioned above relate more to the question of the severity of the risks, rather than the possibility of risks in itself. In this regard, one could not hold that the circumstance that the complainant was the only person affected by the data breach is relevant, given that while it is certainly acknowledged that the consequences of a data breach may be more numerous if the number of affected individuals is high, one could not conclude that a data breach limited to a single affected person could not pose a risk to her rights and freedoms. This is clearly the case when health-related data of the affected individual is involved in the data breach, and the data controller cannot have certainty about the motivations that led the person who committed the inappropriate access to the data to do so.

47. However, the Disciplinary Chamber takes into account that the events occurred around the beginning of the year 2020; at that time, the GDPR had only been in effect for less than two years, the EDPB had not yet published its guidelines 01/2021 regarding examples concerning the notification of personal data breaches, nor its update of the WP250 guidelines adopted on October 3, 2017, on the notification of personal data breaches under Regulation (EU) 2016/679 in the guidelines 9/2022 on the notification of personal data breaches under the GDPR, and that, more generally, the level of knowledge and practice regarding the management of personal data breaches was not at the same level as today. Consequently, the Disciplinary Chamber considers that, given the context in which the defendant found itself, it could not be reproached for failing to notify the DPA of the complainant's data breach in accordance with Article 33 of the GDPR at the time of the events.

48. The Disciplinary Chamber specifies, however, that the current level of knowledge and practice regarding the management of personal data breaches is at such a stage that if similar events were to occur again, the data controller could not invoke the exception provided for in Article 33 of the GDPR, and therefore could not relieve itself of its obligation to notify the DPA in the event of a data breach on the grounds that it would not pose a risk to the rights and freedoms of the affected individual.

#### II.4. Regarding the Technical and Organizational Measures of the Defendant

49. At the end of the hearing held on October 22, 2024, the defendant was invited to communicate the technical and organizational measures that were in place at the time of the events concerning access to medical records by its staff, as well as those in place today. The parties were then able to validly exchange views in this regard. The Disciplinary Chamber specifies that the parties were not invited to conclude regarding the aspects related to the technical and organizational measures of the defendant in the letter it sent them on January 7, 2021, and that therefore the Disciplinary Chamber will not make a decision regarding this aspect.

##### II.4.1. The Parties' Views

50. Firstly, the defendant notes that the technical and organizational measures have not evolved since the occurrence of the events that led to the case at hand, which the complainant contests.

51. Regarding these measures, the defendant states that a therapeutic relationship is presumed to exist for all its healthcare professionals. It notes that its staff is multidisciplinary, comprising both medical and paramedical personnel, and that during patient care, they are required to be treated by multiple practitioners. It adds that the inability of its employees to access adequate information regarding patients could jeopardize the continuity of care. For this reason, the defendant justifies that all medical and paramedical staff have default access to the Oribase software, and thus access to the medical records of all its patients. In any case, access to medical records is tracked electronically.

Decision on the Merits 64/2025 — 11/15

52.

The defendant adds that these technical and organizational measures are intended to evolve. Indeed, the software it has been using since at least the occurrence of the facts, namely "Oribase," will be replaced by the "Patient Portal" during its merger with two other hospitals.

53. Regarding this new software, the defendant notes several measures that will be implemented, which can be summarized as follows:

- For each access request, a warning window will appear asking the concerned person if they have a therapeutic relationship with the person whose medical record they wish to access;
- When the person seeking access to a medical record has an administrative profile, that person must provide proof;
- Proof must always be provided when an employee of the defendant seeks to access the record of a staff member;
- Upon opening a patient's record, part of the screen will provide information on the last five accesses to the same record;
- There will also be a redefinition of profiles and access to medical records.

54. The defendant has also shared (i) the presentation it conducts each month for new employees regarding the confidentiality of medical records and the fact that employees can only consult medical records in the case of a therapeutic relationship, as well as (ii) a mandatory training in the form of e-learning that has been in place since January 1, 2024, for all newcomers. It also conducts occasional awareness campaigns for all staff through newsletters.

55. Furthermore, it has also shared two letters<sup>12</sup> by which it informed the recipients of their dismissal for serious misconduct, which consisted of the inappropriate consultation of medical records. The most recent letter is dated July 24, 2024.

#### II.4.2. Assessment of the Disciplinary Chamber

56. The Disciplinary Chamber notes that the defendant processes a very large number of health data, given that it is a hospital institution, and that these, as mentioned in point 43, require particularly vigilant oversight.

12 Exhibits 6 and 7 of the file provided by the defendant to the Disciplinary Chamber and the complainant on January 6, 2025. The Disciplinary Chamber notes that the two documents are exactly identical; however, document 6 is titled "Document 6: Dismissal Letter for Serious Misconduct dated January 24, 2022," while document 7 is titled "Document 7: Dismissal Letter for Serious Misconduct dated July 24, 2024." Furthermore, the defendant does refer to these two documents distinctly in its letters. Therefore, the Disciplinary Chamber considers that the fact that the two documents are identical is merely the result of a clerical error.

#### Decision on the Merits 64/2025 — 12/15

57. Article 5.1(f) of the GDPR provides that personal data shall be "processed in a manner that ensures appropriate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures (integrity and confidentiality)," and that under Article 5.2 of the GDPR, controllers must be able to demonstrate compliance with the first paragraph of Article 5 of the GDPR (accountability principle).

58. Article 24 of the GDPR states in its first two paragraphs that: "1. Taking into account the nature, scope, context, and purposes of the processing as well as the risks, varying in probability and severity, to the rights and freedoms of natural persons, the controller shall implement appropriate technical and organizational measures to ensure and to be able to demonstrate that the processing is performed in accordance with this Regulation. These measures shall be reviewed and updated as necessary.

2. Where proportionate to the processing activities, the measures referred to in paragraph 1 shall include the implementation of appropriate data protection policies by the controller."

59. Article 32.1 of the GDPR provides that "taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing as well as the risks, varying in probability and severity, to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk (...)." The fifth paragraph of Article 32 states that "the controller and the processor shall take measures to ensure that any person acting under the authority of the controller or of the processor, who has access to personal data, does not process them except on instructions from the controller, unless required to do so by Union or Member State law."

60. In the case at hand, the Contentious Chamber finds that the complainant's medical file was accessed by her hierarchical superior without the processing being aimed at any purpose related to a potential follow-up of the diagnosis or a potential therapeutic follow-up of the complainant. There is no evidence in the file that the hierarchical superior was ever part of any of the personnel groups of the defendant that was responsible for the medical care of the complainant, which could have demonstrated that it was medically necessary for the hierarchical superior to consult the complainant's medical file. Moreover, the fact that the complainant was in a subordinate relationship with her hierarchical superior constituted in itself a compelling reason for the latter not to consult the complainant's medical file, except in exceptional circumstances.

61. The Contentious Chamber therefore adds that it is possible that the technical and organizational measures in place at the time of the events were not sufficient, particularly because the inappropriate consultation of the complainant's medical file was only detected after she raised the issue with the defendant; however, the Contentious Chamber specifies that these technical and organizational measures must not jeopardize the continuity of patient care, which could endanger the health of those patients. Furthermore, as the defendant alleges (see point 51 of this decision), it is not always possible to determine in advance which members of the medical or paramedical staff of a hospital—who are multidisciplinary—will come into contact with a patient, which justifies that all medical and paramedical staff have access to the medical files of the hospital's patients.

62. Furthermore, in a letter dated July 24, 2024, the defendant stated the various faults retained in the context of the dismissal for serious misconduct of one of its employees. In summary, it appears that the former employee who was dismissed did so because he inappropriately accessed several medical files of his former colleagues. Thus, inappropriate consultations have recurred.

63. However, the Contentious Chamber notes that in the context of this dismissal, this time the defendant was able to quickly become aware of these inappropriate accesses to the medical files of staff members, and it took appropriate measures promptly, namely in particular the decision to dismiss. It thus acted appropriately and proactively.

64. In any case, the Contentious Chamber takes into account the fact that, as indicated by the defendant, these technical and organizational measures are intended to evolve.

### III. Corrective Measures and Sanctions

65. Under Article 100, § 1 of the LCA, the Contentious Chamber has the power to:

1° dismiss the complaint;

2° order the dismissal;

Decision on the Merits 64/2025 — 15/15

In accordance with Article 108, § 1 of the LCA, an appeal against this decision may be filed, within a period of thirty days from its notification, with the Market Court (Court of Appeal of Brussels), with the Data Protection Authority as the defendant.

Such an appeal may be introduced by means of an interlocutory application which must contain the information listed in Article 1034ter of the Judicial Code. The interlocutory application must be filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial Code).

(Sé). Hielke HIJMANS

President of the Litigation Chamber

17 The application must contain, under penalty of nullity:

1° the indication of the day, month, and year;

2° the name, first name, and address of the applicant, as well as, where applicable, their qualifications and national register number or business number;

3° the name, first name, address, and, where applicable, the capacity of the person to be summoned;

4° the subject and a brief summary of the grounds for the application;

5° the indication of the judge who is seized of the application;

6° the signature of the applicant or their lawyer.

18 The application, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the court or filed with the registry.